

attorney mistake, inadvertence, or excusable neglect. Plaintiff's failure to appear at the hearing did not affect the Court's evaluation of the merits of the Motion. The Court declines to exercise its discretion to provide relief under 473(b). The Motion is **DENIED**. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

NATIONAL COLLEGIATE STUDENT LOAN TRUST 2007-3 VS. SHEPHERD

Case Number: 24CVG-00826

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and Counsel, on March 7, 2025, for failure to timely serve as required by California Rule of Court 3.110, and for failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to serve and file the MSC statement, the Court will impose sanctions in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve in violation of CRC 3.110 and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. The May 13, 2025 trial date is **VACATED**.

PEREZ VS. MAXIMUS TREE WORKS LLC, ET AL.

Case Number: 24CV-0205260

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on March 7, 2025, to Plaintiff and Counsel for failure to timely seek entry of default/default judgment as required by California Rule of Court 3.110 and failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. Plaintiff has submitted a Declaration in response to the OSC which adequately addresses these failures. The OSC is **DISHCHARGED**. No sanctions will be imposed.

Upon review of the file, the Court notes that its August 27, 2024 Order authorizing service of process on the California Secretary of State, imposes an additional condition that has not been met. Plaintiff must file a proof of service (of summons, complaint, and the Court's August 27, 2024 Order) by mail at the addresses of attempted service set forth in the application on file. There is no proof of service on file for Defendant Saul Ruiz. The Court also notes that a First Amended Complaint was filed April 15, 2025. This matter is not at issue. The trial set for May 13, 2025 is **VACATED**. This matter is set for review regarding status of service on **Monday, June 2, 2025 at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Dallas Segall, in pro per, on February 4, 2025, for failure to appear on January 21, 2025, as ordered on November 25, 2024. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to appear and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m.**

in Department 64. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. Today's 9:00 a.m. review hearing is vacated.

IN RE: WHITE

Case Number: 25CV-0206990

Tentative Ruling on Petition for Change of Name: Petitioner Jersey Addison White seeks an order changing her name to Sigourney Jersey Addison White. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

9:00 a.m. Review Hearings

ERIC ALAN BERG AND ASSOCIATES, INC. VS. HOLZEM

Case Number: 22CVG-00333

This matter is on calendar for review regarding status of default judgment. Defendant has been defaulted but no application for entry of a default judgment has been filed. No status report has been filed. **The Plaintiff is ordered to appear to provide the Court with a status of default judgment.**

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

This matter is on calendar to reset: 1) hearing on Defendant's Motion for Summary Judgment; 2) Mandatory Settlement Conference; 3) Trial. On March 11, 2025, the Court partially granted Plaintiff's Ex Parte Application, vacating the hearing on Defendant's MSJ, as well as the review hearing for trial resetting. This action was filed March 17, 2023. The Court designates it as exempt from case disposition time standards. The Court also notes that Defendant's MSJ was filed December 31, 2024. A First Amended Complaint was filed on February 19, 2025, pursuant to the Court's order granting leave. It appears that the filing of the FAC renders Defendant's earlier-filed MSJ moot, such that it need not be reset for hearing. The parties are ordered to appear to discuss the status of the MSJ and to provide available dates for MSC and Trial.

HJELM VS. REDDING LODGE NO. 1073, BENEVOLENT AND PROTECTIVE ORDER OF ELKS OF THE UNITED STATES OF AMERICA

Case Number: 24CV-0204367

This matter is on calendar for review regarding status of settlement and/or dismissal. At the last review hearing on February 18, 2025, Defendant's counsel informed the Court that the matter had settled during mediation. No notice of settlement has been filed. No request for dismissal has been filed. An appearance is necessary on today's calendar to provide a status of settlement and/or dismissal.

HUGHES VS. SHERRELL

Case Number: 23CV-0202499

This matter is on calendar for review regarding status of settlement. This matter settled at the January 21, 2025 settlement conference. No request for dismissal has been filed. However, Defendant has filed a status statement requesting a 30 day continuance to confirm payment of settlement funds to the lien holder and to obtain a signed request for dismissal from Plaintiff. This